



JAMAICA CONSTABULARY FORCE
Ethics Committee Policy

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Jamaica Constabulary Force ETHICS COMMITTEE POLICY

(March 2012)

1. INTRODUCTION

An explicit commitment to integrity is critical to the legitimacy of policing. The behaviour, attitude and decisions of members must always take into account consideration for public interest and uphold the highest ethical standards. Professional ethics incorporates not just integrity, but also requires members to give an account of their judgment as well as acts of commission or omission, whether intentional or accidental.

While actions of a few members have over time brought into sharp focus questions of integrity and ethical standards, the Jamaica Constabulary Force (JCF) reiterates its commitment to ensure accountability through the adoption of a multiplicity of policies, standard operating procedures and other frameworks. The major system of accountability includes the Jamaica Constabulary Force Code of Ethics, the Jamaica Constabulary Force Ethics and Integrity Policy and the Jamaica Constabulary Force Ethics Committee.

The Jamaica Constabulary Force Ethics Committee seeks to offer a structured approach in examining some of the most difficult and contentious ethical issues facing the organization, and provides members with an appropriate forum to ventilate issues. More specifically, the Ethics Committee seeks to strengthen compliance and best practices by facilitating closure to unresolved issues that impede members' progression within the organization.

2. PURPOSE

The purpose of this policy is to further foster ethical and professional standards by providing a mechanism for the ventilation and closure of unresolved issues that impede members' progression within the organization.

3. SCOPE

This policy applies to all members of the JCF. It covers situations or circumstances in which alleged improprieties on part of members are unable to be resolved through the usual investigative process.

4. DEFINITIONS

The following definitions apply to this policy:

i. Apparent Conflict of Interests

is situations in which it appears that a member's private interests could interfere with the proper performance of his or her official duties

ii. Benefit

includes gift, gratuity, remuneration, allowance, fee subsidy, consideration, free service or entertainment other than as provided for as part of a member's terms and conditions of employment

iii. Determination

means the determination made by the Ethics Committee based on the outcome of a disclosure hearing

iv. Ethics

means a set of principles of moral behaviour—the rules or standards governing the conduct of a person or the members of a profession

v. *Improper*

means anything that is not in accordance with propriety of behaviour or conduct suitable for a particular purpose, person or occasion

vi. *Integrity*

means possession of firm principles - the quality of possessing & steadfastly adhering to high moral principles or professional standards

vii. *Maladministration*

means an administrative action that is unlawful, arbitrary, unjust, oppressive, improperly discriminatory or taken for an improper purpose

viii. *Member*

means sworn and non-sworn members of the Jamaica Constabulary Force

ix. *Natural Justice*

means is concerned with ensuring that a fair decision is reached by an objective decision maker. It requires that two rules be observed:

- The **hearing rule**, which states that a person or body deciding a particular matter must give the affected person the opportunity to present their case and have that material considered before any decision.
- The **rule against bias**, which states that a decision maker should have no personal interest in the matter to be decided, have no bias as to the outcome and act in good faith throughout the process.

x. *Outside Employment*

means any type of employment for which a benefit may be received exclusive of the Jamaica Constabulary Force (JCF).

xi. *Tenure*

means the designated period that a member can remain for a particular position

xii. *Value*

means the principles of right and wrong that are accepted by an individual or a social group

5. RESPONSIBILITIES

5.1 The Ethics Committee has responsibilities to conduct:

- i. workshops for members who have been the subject of ethical hearings and are deemed to require rehabilitation;
- ii. hearings into matters that arise from criminal or departmental investigations that have been disposed of, but wherein ethical issues have emerged;
- iii. hearing into matters where no investigations have been conducted and members are alleged to have not upheld the standards of the profession;
- iv. make appropriate recommendation in relation to ethical matters.

6. POLICY STATEMENT

The Jamaica Constabulary Force (JCF) reaffirms its commitment to ensure that the organization's image and reputation are maintained and proper management and accountability standards are achieved and maintained, as such the Ethics Committee shall:

- i. Conduct vetting for administrative purposes such as promotion, re-enlistment, and posting/assignment,
- ii. Where a member is alleged to be involved in, or conduct him/herself in a manner that breaches the discipline of the organisation but there is insufficient evidence to subject the matter to criminal or disciplinary proceedings; or where there is allegations of adverse low grade intelligence, or information that is not verifiable, conduct hearings in these matters to ventilate the issues.
- iii. Deal with matters brought before it thoroughly, fairly and expeditiously with a view to clear the member of the allegations or impose the appropriate sanctions.
- iv. Maintain confidentiality in all matters and apply the requisite control mechanisms and management principles in relations to records keeping.

7. PROCEDURES

The management of the Ethics Committee shall be in accordance with the following procedures:

7.1 Establishment of the Jamaica Constabulary Force (JCF) Ethics Committee

There is hereby established a Jamaica Constabulary Force (JCF) Ethics Committee which shall be composed of five (5) members who shall be:

- a) Inspector General (Chairman)
- b) Medical Doctor of the Medical Services Branch
- c) Member of the National Intelligence Bureau; not below the rank of Deputy Superintendent of Police (DSP)
- d) Force Chaplain
- e) Staff Association member as required

The members of the Committee will be appointed by the Commissioner of Police or his/her designee.

7.2 Committee Quorum

The Chairman and two (2) other members shall form a quorum for the purpose of meetings.

7.3 Committee Function

The Committee's functions involve:

- i. reviewing allegations of misconduct made against members;
- ii. assessing the risk posed to the Organization, the member and the wider community;
- iii. making a determination as to whether the member should appear for a hearing;

- and
- iv. consider vetting for administrative purposes such as promotion, re-enlistment, and posting/assignment,

7.4 Powers of the Committee

The Ethics Committee has the powers to decide any of the following:

- i. Reject a submission, in whole or in part, and take no further action;
- ii. Refer a matter to other entities for further action to be taken;
- iii. Direct the member to undertake additional training or counselling
- iv. Clear the member of the allegation

All decisions of the Committee shall be by consensus of the simple majority vote of the members present and voting.

7.5 Ethics Committee Secretariat

The Ethics Committee will be supported by a Secretariat which is responsible for managing the administrative functions of the committee.

7.6 Meetings

The Committee shall meet no less than two (2) times per month to conduct hearings.

A. Dealing with Adverse Reports/Submissions

- i. Upon receipt of a report indicating that there is adverse information concerning a member, the Ethics Committee Secretariat will notify the committee's chair who will convene a meeting to consider the matter.
- ii. Where possible, the committee chair shall disclose the details of the report to the individual involved as well as to the members of the Ethics Committee, in the spirit of openness, fairness and to assist decision-making.
- iii. Where the matter is based on intelligence, the committee shall review the available intelligence and decide whether this intelligence can be communicated to the individual. In exceptional circumstances, where it is decided not to disclose the intelligence, for example, source sensitive information, the reasons will be outlined to the individual during the meeting.
- iv. It is possible that there may be cases where providing reasons for non disclosure may, in itself, compromise the source of the intelligence. In such cases no disclosure or reasoning will be provided.
- v. Where the member is not required to appear, the committee shall refer the matter for further investigation or recommend it to be closed.

B. Declaration of Interest

1. Committee members must inform the Chair if they have a personal interest in the individual under consideration. The Chair will decide whether the interest disqualifies the member from being involved in that particular hearing. There must be no conflict of interest in relation to the party involved in the matter.

- i. Any declaration of interest and decision of the Chair must be reflected in the minutes of the meeting.
- ii. The member appearing before the Committee should be invited to state whether he or she has any objection to any member of the panel being present at the hearing.

C. The Interview Process

- i. In so far as is practicable, the hearing should be convened at the earliest opportunity to ensure that the matter is dealt with expeditiously.
- ii. The Ethics Committee Secretariat shall ensure that the member is given at least two (2) days' notice to attend the Hearing.
- iii. The notice should be given in writing and sent through the member's Commanding Officer outlining the date, time and place of the Hearing and the mode of dress.
- iv. Where the member is required to appear, the allegation(s) will be presented during the Hearing, allowing for full ventilation and a determination made on the course of action to be taken.
- v. Whilst rehabilitation is always desirable, there may be occasions when this will not be achievable due to the nature of the intelligence against the member.

D. Communicating the Committee's Decisions and Recommendations

- i. The committee will communicate to the Commissioner of Police its decisions/ recommendations for approval. This communication to the Commissioner should set out:
 - a) the parameters of the allegation(s)/ issue(s) ventilated
 - b) the members response
 - c) the committees decision and rationale

E. Communicating the Commissioner's Decisions

- i. Upon receipt of the Commissioner's decision, a letter will be sent to the member through his Commanding Officer informing him/her of the outcome of the hearing. A copy of this correspondence must be submitted to Assistant Commissioners of Police Administration Branch, Security and Intelligence Branch, Inspectorate and Professional Standards Oversight Bureau for the updating of their records.
- ii. If the member is subsequently transferred to a new place of work, his/her new Commander will be informed by the Assistant Commissioner, Administration, of the findings of the Ethics Committee and any restrictions regarding working, promotion or deployment in specific roles which must be adhered to. This communication should be recorded on his/her file.

F. Requesting Reviews of Decisions

- i. A member may request a review of the decision with the Commissioner, after he/she has been informed of the final decision. The Commissioner may grant or deny the request of the member.

G. Disclosure and Records Confidentiality

- i. Ethics Committee Disclosure Hearing shall be heard in confidence, in the presence of the approved Ethics Committee membership and the member subject to the disclosure. To maintain Ethics Committee confidentiality and credibility no independent persons will be present at hearings.
- ii. Members requiring support or confirmation of their disclosure remaining confidential are encouraged to contact the Deputy Commissioner of Police, Inspectorate of Constabulary/Chair of the Ethics Committee.
- iii. Records shall be managed by the Central Vetting Unit and kept confidential. Records shall also be subject to auditing to ensure compliance with legislative and organisational requirements.

8. REFERENCES

- i. JCF Force Orders and Instructions
- ii. *JCF Ethics and Integrity Policy*
- iii. *JCF Polygraph Procedures and Guidelines*